Pennsylvania
Department of State
State Real Estate Commission

REAL ESTATE EDUCATION PROVIDER INITIAL APPLICATION

Before completing this application, make sure this is the most recent version by comparing this application with the one available on our website at: **www.dos.pa.gov/estate**.

A real estate education provider must obtain the Real Estate Commission's approval before commencing operation in this Commonwealth. To obtain approval from the Commission, the real estate education provider shall:

- Be owned by a person(s) who possess good moral character or, if the owner is a corporation, have officers and directors who meet this requirement.
- Have a name that is acceptable to the Commission. The Commission will *not* accept any name that appears to indicate any connection with a real estate business, franchise, network, or organization, with the exception of a trade association.
- Have a director of operations who meets the requirements outlined in 49 Pa. Code §35.342 of the Commission's Regulations (relating to the approval of the director).
- Designate a person or entity to serve as custodian of records if the real estate education provider were to terminate operations.
- Post a surety bond of $10,000.00 to the Commonwealth for the protection of contractual rights of the real estate education provider's students.
- Have a main location that contains its administrative offices, its records, and a publicly listed telephone number for the real estate education provider's exclusive use.
- Have a location where classes are taught, which must:
  - Be suitable classroom space;
  - Not share office space, instruction space, or a common space with a real estate business, franchise, network, or organization. This paragraph does *not* apply to a real estate trade association OR to a contractual agreement between a real estate licensee and a real estate education provider to provide continuing education courses;
  - Be in compliance with applicable building, fire safety, and sanitary requirements imposed by state, county, and municipal governments.

- **Application Checklist** – Submit the following required items with the application:

  - An application fee of $120.00 in the form of a check or money order made payable to the "Commonwealth of Pennsylvania."
    All fees are NON-REFUNDABLE regardless of the issuance of a license. A $20.00 processing fee will be charged for any check returned unpaid by your bank, regardless of the reason.

  - A completed real estate education provider **owner application**, including the required supporting documentation, for each owner/officer/partner. If there are more than five owners/officers/partners, the top five individuals must submit an application. *A separate fee is not required for this application;*

  - A completed real estate education provider **director application**, including the required supporting documentation. *A separate fee is not required for this application;*

  - A Real Estate School Surety Bond;

  - A certificate of licensure or approval verifying that you are an approved education provider in the jurisdiction where you are located. The name on the license or approval letter must match the name on this application; (**For Out of State Education Providers Only)**

  - Photocopy of the Pennsylvania Corporation Bureau-approved Fictitious Name Registration (if applicable);

- Photocopy of the Pennsylvania Corporation Bureau-approved Certificate of Incorporation (for corporations), Certificate of Registration (for partnerships), or Certificate of Authority (for out of state entities);
  Information from the Corporation Bureau is available online at www.dos.pa.gov.

- Blueprints or a diagram of the entire main location, including the administrative offices, classrooms (if you offer classes at your main location), restrooms, entrances, halls, doors, and windows, and the size and seating capacity for each classroom (if applicable).
  - If the school is located within the same building as a real estate business, franchise, network, or organization, the blueprint/diagram must also include the proximity of that entity in physical relation to the provider.
  - Blueprints/diagrams are required of all applicants, even if you are not offering classes at your main location.

- A copy of the student enrollment agreement;

- A statement of policy regarding refund of tuition and any other fees;

- A sample of completion documentation (transcript or certificate) that will be issued to students.

- **Inspection Requirement** – Before the Commission can approve this application, an inspection is required. If the inspection is failed, a $65.00 fee and a request for reinspection must be submitted.
  - Note – Out of State Education providers are not inspected.

- **Annual Renewal** of a real estate education provider approval is required. The Commission will send renewal information that must be completed and returned to this office *no later than October 31st of each year*. Renewal fees are as follows:
  - **Education Provider: $375**
  - **Satellite Location: $15**
  - **Instructor: $15**
  - **Course: $15**

Please check the Commission's website frequently for detailed policies, updates, and frequently asked questions.

YOU MAY NOT PERFORM OR ADVERTISE ANY EDUCATION PROVIDER ACTIVITIES IN THE COMMONWEALTH OF PENNSYLVANIA UNTIL YOU ARE APPROVED BY THE STATE REAL ESTATE COMMISSION.

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Answer all questions on this application. All information must be typed or legibly printed in black or blue ink.

1. Education Provider's Proposed Name: _____
(The name under which the education provider will operate)

2. Education Provider's Address: _____
(Street)

_____
(City) (State & ZIP) (Website)

3. Are classes offered at the above location? ☐ Yes ☐ No

*If No, you will need to file a separate application to have any classroom space approved as a satellite location. The application must be filed after you have been approved as an education provider, and a separate application must be submitted for each satellite location.

4. Education Provider's Telephone Number(s): (__ __ __) __ __ __ - __ __ __ __ (Main Location)

(__ __ __) __ __ __ - __ __ __ __ (Administrative Offices)

5. Education Provider's Custodian of Records (include name, address, telephone number, and email):

_____

_____

6. Type of Ownership: ☐ Corporation ☐Limited Liability Company ☐Partnership ☐Sole Proprietorship

7. Entity Name of Owner: _____

8. Name and address of each owner/officer/partner:

_____
(Name) (Address) (Telephone Number) (Email Address)

_____
(Name) (Address) (Telephone Number) (Email Address)

_____
(Name) (Address) (Telephone Number) (Email Address)

_____
(Name) (Address) (Telephone Number) (Email Address)

_____
(Name) (Address) (Telephone Number) (Email Address)

9. Name of Proposed Education Director: _____

10. Do you wish to receive correspondence regarding this application via email?

☐ No ☐ Yes, please send correspondence regarding this application to:

_____

(Name) (Email Address)

☐ **Check box if claiming a Business fee exemption for veteran-owned and reservist-owned small business under Act 135 of 2016 (51 Pa.C.S. §§ 9610-9611)**

Under Act 135 of 2016, veterans and reservists starting or opening a small business in the Commonwealth are exempt from the payment of a business fee effective January 2, 2017. Therefore, the board will waive the initial application fee for veteran- or reservist-owned small businesses as follows:

1. The veteran/reservist owner(s) must certify below that they are starting a small business in the Commonwealth. A **small business** must be independently owned, not dominant in its field of operation and employ 100 or fewer employees. The business must be owned AND controlled by a veteran or reservist. For businesses with multiple owners, at least 51% of the ownership interest must be held by veterans/reservists to claim the exemption.

2. The veteran/reservist owner(s) must attach proof of the veteran's or reservist's status at the time the initial application is submitted. Such proof includes a legible photocopy of:
   - A Federal DD-214 form
   - A Federal NGB-22 form
   - A valid Federal Veterans' Administration card or
   - A valid Department of Defense-issued military identification card

CERTIFICATION STATEMENT:

I hereby certify that I am applying for this license in order to start or open a small business in the Commonwealth of Pennsylvania as defined above, that I am a veteran or reservist as evidenced by the attached documentation, and that at least 51% of the ownership of the small business is veteran- or reservist-owned.

_____ _____

Signature of veteran/reservist applicant Date

_____

Printed name of veteran/reservist applicant

** Use additional sheets as necessary for each veteran/reservist owner

Real Estate Education Provider's Certification:

- I have met all requirements and all information supplied on this application is true and correct to the best of my knowledge and belief.
- To the best of my knowledge, I am not the subject of discipline or of a current investigation or proceeding alleging misconduct under a licensing law or criminal law of either this Commonwealth or another state.
- I have read, understand and agree to comply with the Pennsylvania Real Estate Licensing and Registration Act and the Commission's Regulations.
- I agree to permit the disclosure of my licensure record, including any disciplinary history from every state in which I am or have been licensed or will be licensed in the future.
- I understand that any false statement made by me is subject to the penalties of 18 Pa. C.S. §4904 (relating to unsworn falsification to authorities) and may result in disciplinary sanction against my license and/or me.
- I am aware of the criminal penalties for tampering with public records or information pursuant to 18 Pa. C.S. §4911.
- I certify that the education provider:
    - Complies with 49 Pa. Code §§35.341-35.363 of the Commission's Regulations concerning the approval and administration of real estate education providers.
    - Has a director of operations who meets the requirements of 49 Pa. Code §35.342 of the Commission's Regulations that relate to approval of a director.
    - All statements are made under oath and are subject to Commission investigation. Falsification or failure to answer a question is grounds for non-issuance of an approval or suspension or revocation of an issued approval.

_____

(Signature of Owner or Corporate Designee and Printed Name of Signer) (Date)

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